

25NNCV06716 25NNCV06716

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Case Number: 25NNCV06716 Hearing Date: July 10, 2026 Dept: D

TENTATIVE RULING

Calendar: 8

Date: July 10, 2026

Case No: 25NNCV06716 Trial Date: October 4, 2027

Case Name: Montepeque v. Box Thai Street Food, Inc., et al.

MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

[CCP § 877]

Moving Party: Cross-Defendant, Marco Rivera Rodriguez

Responding Party: Defendants/Cross-Complainants, Ounruan Kaner and Samuel Kaner

RELIEF REQUESTED:

An order determining that the settlement entered into between Jose Lazaro Enriquez Montepeque and Marco Rivera Rodriguez was made in good faith.

CAUSES OF ACTION: from Complaint

1) Negligence

2) Permissive Use

3) Negligent Entrustment

4) Vicarious Liability

CAUSES OF ACTION: from Cross-Complaint

1) Total Indemnity

2) Implied Partial Indemnity

3) Equitable Apportionment

4) Express Indemnity and Defense

SUMMARY OF FACTS:

Jose Lazaro Enriquez Montepeque ("Plaintiff") alleges that on October 3, 2024, Plaintiff was a passenger in a vehicle travelling eastbound on Victory Blvd at or near Coldwater Canyon Boulevard in North Hollywood, California. Plaintiff alleges that Defendant Ounruan Kaner ("Ounruan") negligently, carelessly, and recklessly, drove and operated her vehicle, so as to cause collisions with other vehicles ahead of her, including Plaintiff's. The Complaint alleges that Ounruan was operating the vehicle at the direction, request, supervision, management command and with the consent, permission, and knowledge of Defendants Box Thai Street Food, Inc. ("BTSF") and Samuel Kaner ("Samuel") in the course and scope of her employment or agency with BTSF.

ANALYSIS:

On noticed motion, "[a]ny party to an action wherein it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff . . . and one or more alleged tortfeasors or co-obligors . . ." (CCP, § 877.6, subd. (a)(1).) "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (CCP, § 877.6, subd. (c).) Although a determination that a settlement was in good faith does not discharge any other party from liability, "it shall reduce the claims against the others in the amount stipulated" by the settlement. (CCP, § 877, subd. (a).)

Section 877.6 requires "that the courts review [settlement] agreements made under its aegis to ensure that the settlements appropriately balance the . . . statute's dual objectives" (i.e., providing an "equitable sharing of costs among the parties at fault" and encouraging parties to resolve their disputes by way of settlement. (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates*, (1985) 38 Cal.3d 488, 494.)) In *Tech-Bilt*, the court set forth the factors to consider when determining whether a settlement is made in good faith. The *Tech-Bilt* factors are: (1) a rough approximation of plaintiff's total recovery and the settlor's proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; and (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendants. (*Tech-Bilt*, *supra*, 38 Cal.3d at pp. 498-501.) Not every factor will apply in every case. (*Dole Food Co., Inc. v. Sup.Ct.* (2015) 242 Cal.4th 894, 909.)

"The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a 'settlement made in good faith' within the terms of section 877.6." (Tech-Bilt, supra, 38 Cal.3d at pp. 499-500.)

Cross-Defendant Marco Rivera Rodriguez ("Rodriguez") moves to have the Court determine that the proposed settlement agreement between Plaintiff and Rodriguez was entered into in good faith. The key settlement terms are as follows: Plaintiff will release Rodriguez from all claims arising out of the subject incident in exchange for a settlement payment of \$15,000.00. (Massey Decl., ¶ 5.)

The Court finds that the factors set forth in Tech-Bilt have been met for the current case. Rodriguez asserts that liability remains disputed among the parties and no determination of comparative fault has been made. (Mot., p. 6:13-14.) Rodriguez asserts that given the unresolved liability, the \$15,000.00 settlement amount reasonably reflects Rodriguez's potential proportionate share of liability. (Mot., p. 6:14-17.) In the opposition, Defendants argue that the "facts as currently known strongly suggest" that Rodriguez's proportionate share of fault is "materially greater" than \$15,000.00. (Opp., p. 4:5-6.) Specifically, Defendants assert that Plaintiff's past medical expenses are more than double \$15,000.00 and Plaintiff further alleges the need for future medical treatment. (Opp., p. 4:8-10.) Practical considerations require that the evaluation of whether a settlement figure is proportionate to the settling party's liability be made based on the information available at the time of settlement. (Tech-Bilt, supra, 38 Cal.3d at p. 499.) Here, discovery is ongoing and Plaintiff's total recovery remains uncertain. Accordingly, it is difficult to say at this stage that \$15,000.00 is so far "out of the ballpark" as to be inconsistent with the equitable objectives of Section 877.6. The Court will take this into consideration as it considers the remaining Tech-Bilt factors.

Regarding the third Tech-Bilt factor, the entire \$15,000.00 in settlement proceeds is to be paid to Plaintiff as there is only one Plaintiff in this action.

The fourth Tech-Bilt factor, recognizing that a settlor should pay less in settlement than he would if he were found liable after a trial, weighs in Rodriguez's favor as well because \$105,000.00 is less than the cost of litigating this action through trial.

As to the fifth Tech-Bilt factor, the financial condition and insurance policy limits of the settling party, \$15,000.000 represents Rodriguez's full policy limits. (Mot., p. 7:22-23.) Rodriguez further asserts that he "possesses no additional insurance or financial resources that would materially alter his position." (Mot., p. 7:24-26.) In Tech-Bilt, the California Supreme Court noted that "even where the claimant's damages are obviously great, and the liability therefor certain, a disproportionately low settlement figure is often reasonable in the case of a relatively insolvent, and uninsured, or underinsured, joint tortfeasor." (Tech-Bilt, supra, 38 Cal.3d at p. 499, quoting *Stambaugh v. Superior Court* (1976) 62 Cal.App.3d 231, 238.)

Lastly, as to the other Tech-Bilt factors, there are no allegations of collusion, fraud or tortious conduct. (Mot., p. 8:4-10.)

Based on careful consideration of all the relevant Tech-Bilt factors, the Court finds that Defendants have not met their burden to show that the settlement was entered into in bad faith. Even if the settlement amount is disproportionate to Plaintiff's ultimate alleged damages, it is not disproportionate to the Court's assessment of Plaintiff's probable recovery should Plaintiff prove his case.

The motion is GRANTED.

RULING:

Cross-Defendant Marco Rivera Rodriguez's Motion for Determination of Good Faith Settlement is GRANTED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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